

# HOUSE . . . . . No. 5161

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## The Commonwealth of Massachusetts

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PRESENTED BY:

*Adam J. Scanlon*

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to promote affordable utility services in the Commonwealth.

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PETITION OF:

| NAME:                        | DISTRICT/ADDRESS:     | DATE ADDED:      |
|------------------------------|-----------------------|------------------|
| <i>Adam J. Scanlon</i>       | <i>14th Bristol</i>   | <i>2/27/2025</i> |
| <i>Steven S. Howitt</i>      | <i>4th Bristol</i>    | <i>3/3/2025</i>  |
| <i>Steven George Xiarhos</i> | <i>5th Barnstable</i> | <i>6/24/2025</i> |

# HOUSE . . . . . No. 5161

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By Representative Scanlon of North Attleborough, a petition (subject to Joint Rule 12) of Adam J. Scanlon and Steven S. Howitt relative to utility services. Telecommunications, Utilities and Energy.

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## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act to promote affordable utility services in the Commonwealth.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 25 of the General Laws, as appearing in the 2022 Official Edition,  
2 is hereby amended by adding the following section:-

3           Section 24. Public Hearing and Comment Period for Department of Public Utilities Rate  
4 Changes

5           (a) The Department of Public Utilities shall be required to hold at least one public hearing  
6 and a 30-day public comment period before approving any rate increase, including changes to  
7 delivery fees or other charges.

8           (b) The department shall provide notice of such hearings in a manner that ensures  
9 accessibility, including publication on the department's website, written notifications to affected  
10 municipalities, and public service announcements.

SECTION 2. Chapter 164 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following section:-

Section 149. Rate and Delivery Fee Increase Cap

(a) Notwithstanding any general or special law to the contrary, no investor-owned electric or gas distribution company shall increase delivery fees or rates by more than 3 percent per year, adjusted annually based on the Consumer Price Index for the Northeast region, as determined by the Bureau of Labor Statistics.

(b) The department shall adopt regulations necessary to implement this section, including provisions ensuring transparency in rate adjustments and consumer notifications.

SECTION 3. Said chapter of the General Laws, as so appearing, is hereby amended by adding the following section:-

Section 150. Veteran Utility Rate Reduction Program

(a) The department shall establish a Veteran Utility Rate Reduction Program that expands upon the existing tiered rate structure, specifically targeting veterans, as defined by section 1 of chapter 115, and those receiving VA disability compensation.

(b) The department shall ensure that eligible veterans receive utility delivery fee discounts contingent upon and aligned with the existing tiered low-income discount structure as established by the department, with veterans qualifying for equivalent or greater benefits under the same income thresholds.

(c) The department shall promulgate regulations necessary for the implementation of this section, ensuring that verification of eligibility for the veteran discount aligns with existing

procedures for income-based discounts, utilizing VA records and other appropriate documentation. The department shall also conduct outreach efforts to maximize veteran participation in the program

SECTION 4. Said chapter of the General Laws, as so appearing, is hereby amended by adding the following section:-

Section 151. Senior Utility Rate Reduction Program

The department shall establish a utility rate reduction program for residents of the commonwealth aged 65 and older to provide discounted utility delivery fees. The department shall promulgate regulations to determine eligibility criteria, discount rates, and ensure streamlined implementation.

SECTION 5. Chapter 239 of the Acts of 2024 is hereby amended by striking out sections 4, 5, 10, 11, 16, 17, and 98.

SECTION 6. Notwithstanding any general or special law to the contrary, there shall be a special commission to study and recommend reforms to utility delivery fee structures, industry best practices, and cost-reduction measures for consumers in the Commonwealth. The commission shall analyze the impact of delivery fees on ratepayers, identify the primary cost drivers, and evaluate regulatory or market-based strategies to mitigate excessive charges while ensuring reliable service. The commission shall assess the impact of delivery fees on consumer costs, market competition, and energy affordability through a review of historical rate structures, policy comparisons with other states, stakeholder input, and financial modeling to identify potential reforms that could reduce costs while maintaining reliable service. Additionally, the commission shall review the effectiveness of existing regulations governing delivery fees and

54 identify potential legislative or administrative adjustments to enhance pricing transparency and  
55 efficiency. The commission shall consist of the House and Senate chairs of the Joint Committee  
56 on Telecommunications, Utilities, and Energy, who shall serve as co-chairs; the Speaker of the  
57 House of Representatives or a designee; the President of the Senate or a designee; the House  
58 Minority Leader or a designee; the Senate Minority Leader or a designee; the Chair of the  
59 Department of Public Utilities or a designee; the Attorney General or a designee; one  
60 representative from the Massachusetts Municipal Association; one representative from the  
61 Massachusetts Competitive Energy Suppliers Association; and two individuals with expertise in  
62 utility regulation, energy pricing, or economic analysis to be appointed by the Governor. The  
63 commission shall hold no fewer than four public hearings to solicit input from stakeholders,  
64 including consumer advocacy groups, industry representatives, and regulatory agencies. The  
65 commission shall submit a report detailing its findings and recommendations, including any  
66 proposed legislation, to the House and Senate Committees on Ways and Means, the Joint  
67 Committee on Telecommunications, Utilities, and Energy, and the Clerks of the House of  
68 Representatives and Senate no later than twelve months after the passage of this legislation.